

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, February 6, 2025. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2022-26908 against Police Officer Alberto Leonardo, Tax Registry No. 956837. The case was conferenced on January 28, 2025, before Assistant Deputy Commissioner of Trials Jeffrey Adler, who approved the dismissal of the charges in return for the recommended negotiated penalty of Departmental Imposed Training.

Andre Applewhite

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Chief Prosecutor, APU

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-031873
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, LEONARDO	FIRST ALBERTO	M.I.	COMMAND 849
SHIELD NO. 11284	TAX REGISTRY NO. 956837	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2014	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Alberto Leonardo, on or about May 15, 2021, at approximately 2127, while assigned to TB ATU and on duty, in the vicinity of Lexington Avenue/63rd Street Subway on the Q line platform, New York County, was discourteous, in that he spoke discourteously to an individual stating in sum and substance, "you're too old for this shit", without police necessity.	DISMISSED	Training .00 - Respondent will comply with and complete re-training prescribed by the department.
2. 3. Police Officer Alberto Leonardo, on or about May 15, 2021, at approximately 2127, while assigned to TB ATU and on duty, in the vicinity of Lexington Avenue/63rd Street Subway on the Q line platform, New York County, was discourteous, in that he spoke discourteously to an individual stating in sum and substance, "next time you don't fuck with three officers. Just shut your fucking mouth, and you keep it good", without police necessity.	DISMISSED	



FIRST DEPUTY COMMISSIONER

3/12/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

4/14/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031873BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, LEONARDO	FIRST ALBERTO	M.I.	COMMAND 849
SHIELD NO. 11284	TAX REGISTRY NO. 956837	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2014	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Police Officer Alberto Leonardo, on or about May 15, 2021, at approximately 2127, while assigned to TB ATU and on duty, in the vicinity of Lexington Avenue/63rd Street Subway on the Q line platform, New York County, was discourteous, in that he spoke discourteously to an individual stating in sum and substance, "I'm not taking you to fucking jail", without police necessity.	DISMISSED	

FIRST DEPUTY COMMISSIONER

3/12/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)

POLICE COMMISSIONER

4/14/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 6, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-26908 (PODS Case #C-031873; CCRB Case #202102950) against Police Officer Alberto Leonardo, Tax #956837, with the recommendation that the Charges and Specifications against Police Officer Leonardo be dismissed and that Police Officer Leonardo receive Training. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

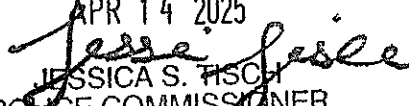


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED

APR 14 2025

JESSICA S. TISCH
POLICE COMMISSIONER